

Lecture 02

Constitution: Genesis and Its Important Features

Historical Underpinnings

Arrival of Britishers

- 1600 - Right of trading to EIC under charter by queen Elizabeth I
- 1608 - Arrival of British Traders in the form of British East India Company
- 1765 - Company obtained Diwani Rights (Revenue, Civil, etc.) of Bengal,

Odisha and Bihar. (Battle of Buxar, 1764)

Historical Underpinnings

Company Rule (1773-1858)

Historical Underpinnings

Company Rule (1773 to 1858)

Regulating Act, 1773

- First step to regulate British EIC
- Beginning of Central Administration
- Made governors of Bombay and Madras presidencies - subordinate to the governor general of Bengal
- Governor of Bengal —> Governor General of Bengal
 - Lord Warren Hastings
- Supreme court at Calcutta (1774)
- Appointment of Court of Directors
- No bribes or private trade
- Court of Directors to report on its revenue, civil, and military affairs in India.

Historical Underpinnings

Company Rule (1773 to 1858)

- Amending Act (Act of Settlement), 1781
 - To rectify mistakes of Regulating Act, 1773
 - Exempted Governor general and council from ambit of SC for acts done in official capacity
 - Appeal from Provincial Court taken by GG
 - Empowered the Governor-General-in Council to frame regulations for the Provincial Courts and Councils.
 - SC to have jurisdiction over all inhabitants of Calcutta.
 - Court - to administer the personal law of the Defendants.

Historical Underpinnings

Company Rule (1773 to 1858)

- Pitt's India Act, 1784
 - Distinguished commercial and political functions of EIC
 - Established Dual System of Governance
 - Court of Directors (CoD) - Commercial Affairs
 - Board of Control (BoC) - Political Affairs, Military, Revenue
 - Significance -
 - Company's territories- 'British possessions in India'
 - British Gov. - Supreme Control

Historical Underpinnings

Company Rule (1773 to 1858)

- Act of 1786
 - Lord Cornwallis
 - Power to override the decision of his council in special cases.
 - Commander-in-Chief.

Historical Underpinnings

Company Rule (1773 to 1858) - Charter Acts

Charter Act of 1793

- Extended trade monopoly for 20 years.
- Extended overriding power given to Lord Cornwallis to all future Governor-Generals and Governors of Presidencies.
- GG- more powers and control over subordinate presidencies of Bombay, Madras
- Members of Board of Control + staff - to be paid out of the Indian revenues.

Historical Underpinnings

Company Rule (1773 to 1858) - Charter Acts

Charter Act of 1813

- Abolished the trade monopoly of the company in India
 - Exceptions: trade in tea and trade with China.
- Established the sovereignty British Crown over the Company's territories
- Allowed Christian missionaries
- Spread of western education
- Authorised the Local Governments to impose taxes + to punish

Charter Act of 1833

[Saint Helena Act/ Laissez-faire/ Industrial R]-

- Final step towards centralisation
 - GG of Bengal → GG of India - All Civil+Military powers + Exclusive legislative powers for the entire British India (Deprived Governor of Bombay and Madras)
 - First: Lord William Bentick
 - Regulations → Act
 - EIC as commercial body - ended - now only administrative body
 - Deprived the Governors of Bombay and Madras of their legislative powers
 - GG of India was given exclusive legislative powers for the entire British india
 - Introduction of open competition for civil servants - negated by CoD.

Consider the following statements about ‘the Charter Act of 1813’:

- (1) It ended the trade monopoly of the East India Company in India except for trade in tea and trade with China.
- (2) It asserted the sovereignty of the British Crown over the Indian territories held by the Company.
- (3) The revenues of India were now controlled by the British Parliament.

Which of the statements given above are correct? (*Prelims 2019*)

- (a) 1 and 2 only
- (b) 2 and 3 only
- (c) 1 and 3 only
- (d) 1, 2 and 3

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Charter Act of 1853

- Did not specify any particular period for extension of Company rule (unlike the previous Charters)
- Separated Legislative and Executive functions of GG's council - Indian Central Legislative Council (Mini Parliament)
 - Six new members in Council- Legislative councillors - first time 4 local representatives - from provincial governments of Madras, Bombay, Bengal and Agra.
- Open competition system for civil servants.
 - 1854 - Macaulay Committee (the Committee on the Indian Civil Service) appointed
- Court of Directors - could create a new presidency or province.
 - Done to manage the increasing no. of annexed territories.

Historical Underpinnings Crown Rule (1858-1947)

Government of India Act, 1858 (Act for Good Govt.)

- East India Company → British Crown.
- Governor-General of India → Viceroy of India - representative of the British Crown in India (First - Lord Canning)
- Ended the system of double Government - CoD and BoC abolished
- New office - Secretary of State for India- authority and control over Indian administration.
 - Member of the British Cabinet, Responsible to British Parliament.
 - Secretary of state (Chairman) + 15-member council of India - Advisory Body
- No big change in governance

Indian Councils Act, 1861

- Landmark (Post revolt)
- Participation of Indians in law making - non-official members in Viceroy's Council
- Beginning of decentralization- led to internal autonomy to provinces (1861 to 1937)
- New legislative Councils - Bengal, NWP, Punjab
- Recognition to the 'portfolio' system (introduced by Lord Canning in 1859)
- Viceroy - ordinance power (current affairs linkage)

Historical Underpinnings

Crown Rule (1858-1947)- Council Acts

Indian Councils Act, 1892

- Increased non-official members - but, still official members
- Increased power of legislative councils -
 - Budget discussion
 - Can question executive
- Nomination of some non-official members of the
 - Central Legislative Council by the viceroy
 - Provincial legislative councils by the Governors
- Limited and indirect provision use of election (word election - not used)

Indian Councils Act, 1909

(Morley-Minto Reforms)

- Increased size of legislative councils - Central and provincial.
 - Retained official majority in Central legislative council,
 - Allowed non- official majority in provincial legislative councils
- Enlarged the deliberative functions of the legislative councils
 - Eg. Supplementary questions, move resolutions on the budget etc.
- Association of Indians with the executive councils of the Viceroy and Governors (for First time).
 - Satyendra Prasad Sinha - first Indian to join the Viceroy's executive council.
- Introduced communal representation - separate electorate to Muslims
 - Lord Minto- Father of Communal Electorate.
- Also provided for the separate representation of presidency corporations, chambers of commerce, universities and zamindars.

Historical Underpinnings

Crown Rule (1858-1947)- GoI Acts

- Government of India Act, 1919 (Montagu-Chelmsford Reforms)
 - Montagu's Statement (1917): Objective of British govt- gradual introduction of responsible Government in India
 - Central and Provincial subjects (Linkage - 7th schedule)
 - Provincial subjects – Transferred and Reserved. (System of Diarchy - failed)
 - Bicameralism at center and direct elections - for first time
 - Bicameralism= Indian legislative council became - (Council of State+Legislative Assembly)
 - Franchise - on the basis of property, tax or education - to limited people

Historical Underpinnings

Crown Rule (1858-1947)- GoI Acts

- Government of India Act, 1919 (Montagu-Chelmsford Reforms)
 - 3/6 members of Viceroy's Executive Council to be Indians
 - Extended communal representation- separate electorates for Sikhs, Indian Christians, Anglo-Indians and Europeans.
 - New office of the High Commissioner for India (in London)
 - Central Public Service Commission (1926)
 - Separated provincial budgets from the Central budget
 - Statutory commission after 10 years → Simon Commission

Historical Underpinnings

Crown Rule (1858-1947)- GoI Acts

- Government of India Act, 1935
 - Lengthy and detailed- 321 Sections and 10 Schedules.
 - Provided for the Establishment of an **All-India Federation** - provinces and princely states as units.
 - Three lists—the Federal List, Provincial List and the Concurrent List.
Residuary powers to Governor General.
 - The Federation never came into being (princely states did not join)
 - Abolished dyarchy in the provinces → introduced ‘provincial autonomy’ (Introduced responsible Governments in provinces)

Historical Underpinnings

Crown Rule (1858-1947)- GoI Acts

- Government of India Act, 1935
 - Adoption of Dyarchy at the Centre- Federal subjects divided into reserved and transferred subjects - Not implemented at all
 - Introduced bicameralism in six out of eleven provinces.
 - Extended the principle of communal representation - separate electorates for depressed classes (Scheduled Castes), women and labour (workers).

Historical Underpinnings

Crown Rule (1858-1947)- GoI Acts

Government of India Act, 1935

- Extended franchise- To 10% of the total population
- RBI
- Provincial Public Service Commission and Joint PSC.
- Federal Court (set up in 1937)

In the federation established by The Government of India Act of 1935. Residuary Power was given to the -

(Prelims 2018)

- (a) Federal Legislature
- (b) Governor General**
- (c) Provincial Legislature
- (d) Provincial Governors

Historical Underpinnings

Crown Rule (1858-1947)- GoI Acts

- Indian Independence Act, 1947
 - Ended British rule → declared India as an independent and sovereign state
 - Partition of India - two independent dominions of India and Pakistan (right to secede from the British Commonwealth)
 - Abolished the office of Viceroy → GG (to be appointed by the British King on the advice of the dominion cabinet)
 - Empowered Constituent Assemblies to frame and adopt constitution

Historical Underpinnings

Crown Rule (1858-1947)- GoI Acts

Indian Independence Act, 1947

- No Act of the British Parliament passed after August 15, 1947 was to extend
- Office of the Secretary of State for India abolished → transferred his functions to the Secretary of State for Commonwealth Affairs.
- Lapse of British paramountcy over the Indian princely states and treaty relations with tribal areas
- Indian princely states - to join the Dominion of India or Dominion of Pakistan or to remain independent.

Historical Underpinnings

Crown Rule (1858-1947)- GoI Acts

Indian Independence Act, 1947

- Governance by GoI Act, 1935 till new constitution
- Dropped title - Emperor of India
- Discontinued the appointment to civil services

Making of Indian Constitution

Constituent Assembly

- 1934 - MN Roy (Idea of Constituent Assembly)
- 1935 - INC (First official demand)
- 1938 - Nehru (First declaration)
- 1940 - August offer (demand accepted principally)
- 1942 - Cripps
- 1946 - Cabinet Mission - Constituent Assembly Constituted (1946)

Constituent Assembly

Composition

- **Total Strength:** The total strength of the body is 389 members.
 - 296 members represent British India.
 - 93 members represent princely states.
- **Seat Allocation:** Seats were allocated in proportion to the population of various communities.
- **Seat Division:** The seats are divided among different communities: Muslims , Sikhs
- General category (which includes all communities except Muslims and Sikhs).
- **Voting System :** The voting system is based on a **communal electorate**.

Constituent Assembly

Working

- Temporary President - Dr. Sachchidananda S inha, the oldest member (French practice)
- Dr. Rajendra Prasad - elected President of the Assembly.
 - H.C. Mukherjee and V.T. Krishnamachari - Vice-Presidents of the Assembly.
- **Objective Resolution** - by Nehru
 - Laid down the fundamentals & philosophy of the constitutional structure
 - Modified version - today's preamble

Constituent Assembly

Assembly after 1947 Act

- Assembly - Fully sovereign body
- Assembly also became a legislative body (Parliament / Dominion Legislature)
 - Constituent body - chaired by Dr. Rajendra Prasad
 - As Legislative body - chaired by G.V. Mavlankar.
- Also performed other functions - National flag, anthem, ratified commonwealth membership, elected President of India

Constituent Assembly

Committees

- Major
- Minor
- Drafting

Hindi Text of Constitution

- 58th Constitutional Amendment Act of 1987 (Article 394-A)